

STATE OF NEW YORK

10386--A

IN ASSEMBLY

March 3, 2026

Introduced by M. of A. BURDICK -- read once and referred to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the vehicle and traffic law, in relation to limiting the suspension or revocation of an individual's driver's license when participating in a treatment court program

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (e) of subdivision 2 of section 1193 of the vehicle and traffic law is amended by adding a new subparagraph 8 to read as follows:

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4 (8) Treatment court program. Notwithstanding any law, rule, or regulation to the contrary, the suspension or revocation of a driver's license by the department shall not result from a defendant taking a plea, where:

5 a. the defendant was a participant in a designated treatment court program recognized and established by the chief administrator of the courts or their designee pursuant to sections 170.15, 180.20, 230.11, or 230.21 of the criminal procedure law;

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8 b. the defendant pleaded guilty in accordance with a conditional plea agreement before such a treatment court;

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10 c. as required under such a conditional plea agreement, the defendant successfully completed a treatment program and complied with any other requirements or conditions;

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13 d. the court allowed the defendant to withdraw their previously entered plea of guilty, and the defendant pleaded guilty to lesser charges in accordance with such a conditional plea agreement; and

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16 e. the department revoked or suspended the defendant's driver's license upon the defendant initially having pleaded guilty and at least six months have elapsed since such initial plea.

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23 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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